

All the Privacy Challenges Awaiting Us in 2024

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Never before in the history of humanity have data – starting with personal data – been so central to the matters of markets, society, and democracies. Data are the protagonists of the business model of the entire digital ecosystem or a large part of it, they are the stars of the diet of artificial intelligence algorithms that, without them, would be uneducated and inexperienced children, and they represent one of the best hopes for the entire world to steer towards a better future, whether it be in medicine and research, economics and finance, transparency and democracy. The year 2024 will not escape this rule and, despite all the limitations of a society in which the only predictable thing is that the future is unpredictable, it is not difficult to imagine that privacy regulations will have a decisive impact on the lives of individuals, the society in which we live, the markets, and our democracies. It is more challenging to attempt to hazard predictions about the issues, among the many already on the table, that will dominate the coming months regarding privacy and its surroundings.

The year 2023 closed by offering us some clues. To begin with, just as many of us were already dealing with the Christmas tree, Meta announced to hundreds of millions of European users that to continue using its services, they would have to choose: subscribe and pay a monthly fee or consent to the use of profiling for the dissemination of personalized advertising messages. “Pay or ok,” in short. The same business model already used, across Europe, by various online newspaper publishers.

Legal or illegal? An answer is, evidently, urgent and it will be difficult to avoid identifying it in the early months of 2024. If the answer is yes, the risk is that the right to privacy becomes a right for the wealthy only because, naturally, for these individuals it costs less to say no to having their personal data processed for advertising purposes and to agree to pay a few euros a month. However, privacy is a fundamental right that should be universal, that is, guaranteed in the same way to everyone, regardless, among other things, of social class and bank account. If the answer is no, there is a risk of going against the history that has made this “exchange,” data for services, the business model of a large part of the digital ecosystem but, above all, there is a risk of establishing a principle that is not easy to enforce and, therefore, incapable of effectively guaranteeing individuals those rights and freedoms that, by affirming it, one would wish to guarantee them. But above all, while the inalienability of fundamental rights is a certain element, the unavailability of given quantities of personal data and of individual forms of exercising the right is less obvious. On the other hand, so far, the Data Protection Authorities across Europe have provided different answers to the issue. Now, however, it is necessary to resolve it in unison to ensure individuals and the industry adequate legal certainty.

The year just begun will also be, as has happened for the past year, the year of artificial intelligence and, in particular, of its definitive affirmation as a mass phenomenon. It is easy to predict that at the crossroads of privacy and artificial intelligence there will be excitement, there will be novelties, heated discussions, and probably clashes. Many issues are on the table regarding this, but one stands out for its importance and urgency, and that is related to the training of algorithms.

Is it lawful or not to trawl the internet for billions of personal data relating to billions of people to train artificial intelligence algorithms as has been done so far? Here too, it is neither easy to rush to answer yes, nor to hastily say no. In the first case, one would accept the idea that personal data representative of a fundamental right could be transformed into commercial and technological assets of a handful of companies without the individuals concerned – that is, the people to whom the data in question refer – ever having authorized such exploitation. Is this a legally legitimate and democratically sustainable scenario? If the answer is no, on the other hand, a significant mortgage would be placed on the future of artificial intelligence because, at present, it is not taken for granted that there are different solutions for training at least certain types of algorithms. Certainly, intermediate solutions are always possible but they are not easy to imagine and, above all, to implement. However, a solution must be found. In Italy, there is an investigation – that against OpenAI for the ChatGPT3 service – whose resolution inevitably presupposes the identification of this solution. In Europe, on the other hand, the task force established within the EDPB is working precisely to try to reach a common position.

Two epoch-making questions that, moreover, it will be difficult to avoid addressing and attempting to resolve in the coming months while, moreover, many others will emerge and others still will impose themselves on the attention of public and private stakeholders as even more urgent. Those who follow matters of personal data and privacy will certainly not be bored in 2024.